

Court No. - 29

Case :- WRIT - C No. - 31869 of 2019

Petitioner :- Muslima

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Atul Pandey

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

The recovery citation dated 17.8.2019 with regard to electricity dues is under challenge in this petition.

The submission of the learned counsel for the petitioner is that the aforesaid citation has been issued on account of non payment of electricity dues inasmuch as, the bills raised against the petitioner were incorrect. The correctness of the electricity bill can always be disputed by the petitioner and got rectified by raising objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid facts and circumstances, we dispose off the writ petition with liberty to the petitioner to raise his grievance before the Executive Engineer in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005.

In case, any objections are so raised, the Executive Engineer shall consider and decide the same most expeditiously in accordance with law, if possible within month. The recovery shall abide by the decision of the Executive Engineer.

The writ petition is ***disposed off.***

Order Date :- 15.10.2019

Ishan